

NOTICE INVITING TENDER
FOR
ANNUAL MAINTENANCE CONTRACT (AMC)
OF
LOCAL AREA NETWORK AT SCOPE MINAR

Enquiry No. SAIL/C&IT/2013-14/ENQ/AMC/SM-LAN/001 Dated 01/02/2014



स्टील अथॉरिटी ऑफ इण्डिया लिमिटेड
STEEL AUTHORITY OF INDIA LIMITED

Computer & Information Technology
19th Floor, Scope Minar, Laxmi Nagar
Delhi-110092

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INTRODUCTION

SAIL, New Delhi (hereinafter called the “Customer“), invites sealed tender for Annual Maintenance Contract (AMC) of Local Area Network (LAN) at Scope Minar consisting of 5 switches of M/s Enterasys Networks make (Matrix N7), New Delhi **for 1 (one) year**. Parties, who are in a position to quote for Maintenance of LAN in accordance with the requirements, may submit their quotation to this office as per instructions specified here under.

Terms & condition of the tender are mentioned in the Annexure I to VI. Detailed specifications and quantities of items to be covered under the scope of AMC have been detailed in Annexure-VI.

INSTRUCTIONS TO TENDERERS

1. RECEIPT OF TENDERS:

A) **Date:** Tenders will be received upto **15:00 hours on 15/02/2014**

B) **Venue:**

STEEL AUTHORITY OF INDIA LIMITED,
Computer & Information Technology (C&IT),
Scope Minar (19th Floor)
Laxmi Nagar, Delhi -110092

2. SUBMISSION OF TENDERS:

A) Tenders submitted after the date and time of opening will not be entertained.

B) Tenders should be delivered by hand/courier so as to reach the address before the time & date of tender opening. Telex, Facsimile & e-mailing bids will not be considered.

C) Tenders should be submitted in **three part Bids** –

Part I) Earnest Money: in the form of Bank Demand Draft/banker's cheque of **Rs. 7,500/- (Seven Thousand Five Hundred only)** drawn in favour of Steel Authority of India Limited, New Delhi, from any Scheduled Commercial Bank except Co-operative and Gramin bank. No interest shall be paid on the EMD.

The EMD in form of Demand Draft / Banker's cheque should be valid for a period of **3 months** from the date of tender opening & should be operable from New Delhi / Delhi branch of the bank.

In the case of unsuccessful bidders, EMD shall be refunded within 30 days of opening of Price Bids. The EMD will be refunded to the successful bidder after placement of order and on submission of Performance Guarantee Bond by the bidder. In case of failure on the part of the successful bidder to submit the Performance Guarantee Bond within the stipulated period, his EMD shall be forfeited.

Part II) Techno-Commercial Bid: This Bid should contain technical and commercial offer along with the Declaration of acceptance of Scope of Work, Techno-Commercial Terms & Conditions / Company details asked for in **Form -I & II of this RFQ along with the documents as per the Annexure-II.** It may be noted that in no form the price should be indicated in this part of the offer. Please submit duly signed un priced price bid along with techno commercial bid.

Part III) Price Bid: This Bid should contain only the Price Bid, in the prescribed Price Bid Format, given at **Form-III of this RFQ**. Price quoted should be firm and all-inclusive except service tax (as applicable).

The price quoted in Price Bid should be based on flat unit rate in each category. All categories listed in **Form-III** should be quoted, failing which the tender bid shall be rejected (i.e. no partial offer will be accepted or evaluated). **Service Tax (as applicable) should not be included in either the flat unit rate of each category or total value of the contract. The service tax component should be shown separately which will be paid on 70% of bill value as per Valuation of service for the purpose of Service Tax.**

All the three parts should be sealed in separate covers super-scribing the tender reference. The three sealed covers should then be sealed in a single envelope, super-scribing it as given below: -

[Tender Reference No, Date, Due date / Time of Opening.....]

[Tender: Annual Maintenance Contract (AMC) for Local Area Network at Scope Minar, Delhi]

[Address: Steel Authority of India Limited, Computer & Information Technology

Department (C&IT), 19th Floor, Scope Minar, Laxmi Nagar, Delhi -110092]

- D) Tender should be submitted in a sealed envelope addressed to:**
Shri Md Khurshid
Dy. Manager
Computer & Information Technology (C&IT),
19th Floor, Scope Minar, Laxmi Nagar
Delhi -110092
- E) Tender Opening: Only the EMD (Part I) and the Techno-Commercial Bids (Part II) of the tenders; received upto 15:00 hours on 15/02/2014 will be opened immediately thereafter in the above office. Part III of the tender containing Price Bid will be opened on a date to be announced later.**
- F) Key Contacts:** For any clarification regarding the Tender Documents, the following officers of SAIL may be contacted:

<i>Name & Designation</i>	<i>Address</i>	<i>Phone no.</i>	<i>E-mail</i>
Ms Divya Chadha AGM (C&IT) SAIL	19 th Floor, SCOPE Minar, Laxmi Nagar Delhi -110092	+91 11 2240 3431 +91 99686 05254	Divya.chadha@sailex.com

Ms Rajni Kapoor Manager (C&IT) SAIL	1 st floor, Ispat bhawan, Lodi Road, New Delhi -110092	+91 11 24300189 +91 99686 05367	rajni.kapoor@sail.com
Mr. Md Khurshid Dy. Manager (C&IT) SAIL	19 th Floor, SCOPE Minar, Laxmi Nagar Delhi -110092	+91 11 2240 3442 +91 99686 05771	khursheed.md@sail.com

3. DEFINITIONS:
 - a. "Bid/ Tender" refer to the submission of proposal made by a prospective Bidder in the process of participation in the tendering process for the work.
 - b. "Bidder/Tenderer" means the Company (Registered under Companies Act) submitting a bid against the invitation to tender and shall include its heirs, executors, administrators legal representative, successors and assigns.
 - c. "Contract" means the Contract Agreement entered into between the Purchaser and the successful bidder (contractor), together with the Contract Documents. The Contract Agreement and the Contract Documents shall constitute the Contract, and The term "the Contract" shall in all such documents be construed accordingly.
 - d. "Contractor" or "Seller" or "Supplier" or "Party" or "Agency" or "Vendor" means the company whose bid to perform the Contract has been accepted by the Purchaser and is named as such in the Contract Agreement, and includes the legal successors or permitted assigns of the Contractor.
 - e. The term "Purchaser/Customer" shall mean the Steel Authority of India Limited, Corporate office
4. The purchaser reserves the right to accept / reject the tender in full or in part without assigning any reason.
5. Tenders not confirming to the tender instructions and terms and conditions are liable to be rejected. Any deviation from the tender specifications, scope of supply, should be clearly indicated in writing in the tender, separately listed on one sheet captioned " Deviation(s) suggested".
6. **The tenderers should declare whether any proprietor / partner / director of their company has any relations with any employee working in SAIL Corporate Office or Directors of SAIL and if so, give the details.**
7. Bidder should be an authorized service/Business/channel partner of M/s Enterasys for maintenance of equipment covered in AMC.
8. **ELIGIBILITY CRITERIA :**
Tenderer must fulfil the following eligibility/Pre-Qualification criteria to participate in this tender. Non-compliance of any of the criteria will amount to disqualification for the bidder:-
 - a. The tenderer should be Authorized service/Business/channel partner of OEM – M/S Enterasys.

- b. The tenderer must not be black-listed in any Government / undertaking organizations
- c. The tenderer should be a company registered in India.
- d. The tenderer should have a full-fledged in-house service center/ Technical Support office at Delhi/NCR
- e. The tenderer should have successfully carried out at least two orders of maintenance of LAN Switch(s) with minimum 100 network nodes.
- f. Average annual turnover of the company (tenderer) should not be less than 50 lakhs per annum for immediate preceding three years i.e FY 2010-11, 2011-12 & 2012-13

9. All the information / supporting documents mentioned in Annexure II must be submitted along with Techno -Commercial Bid (Part-II)

10. Evaluation criteria:

- (a) Bid should be submitted in sealed envelope only.
- (b) The Techno- Commercial offer of the tenderer who have submitted the EMD (Part-I) for the requisite amount shall only be opened on the due date.
- (c) Bids/Offer of following kinds may be rejected:
 - i) Bids which do not confirm unconditional validity of the bid for 45 days from the date of opening of bid.
 - ii) Offers without the filled in **Form - I to III of this RFQ** along with the prescribed documents.
 - iii) Offers where prices are not firm during the entire duration of the contract and/or with any qualifications.
 - iv) Offers which do not conform to our price bid format in **Form - III**.
 - v) Offers which do not conform to the contract period indicated in the bid.

- (d) Technical/ Commercial Evaluation criteria:

Incomplete and non-conforming bids will be rejected outright.

- i) Bid should be complete and covering the entire scope of job.
- ii) Bid should conform to all the technical and commercial conditions indicated in the bid documents.

- (e) Price bid Evaluation Criteria

Evaluation of bids: - Bids shall be evaluated on the Total Evaluated Price as indicated in **Price Bid Format in Form -III** of this RFQ. Among the techno-commercially acceptable offers, the bidder with the Lowest Price quote (L1 price) shall be awarded the contract.

Supporting Documents to be submitted alongwith the Bid:

- i) Letter of authorization from the OEM stating that bidder is authorized service/ Business/Channel partner of OEM.
- ii) Letter from OEM for Back to Back support
- iii) Undertaking that no Government/Undertaking organization has blacklisted the firm for any reason
- iv) Notarized copy of Registration Certificate of the company (registered under Indian Companies Act 1956.)
- v) Notarized copy of the document in support that the bidder has a full-fledged in-house service center/ Technical Support office at Delhi/NCR
- vi) Notarized Copy of at least two orders/certificate of execution of maintenance contract of LAN (network) with minimum 100 network nodes
- vii) Notarized copy of Service Tax Regn. No. (Centre / State) certificate.
- viii) Notarized copy of Sales Tax and VAT registration no. certificate.
- ix) Notarized copy of PAN Card issued by the Income Tax Department and valid Income Tax Returns for the immediate preceding 3 Financial Years i.e. FY 2010-11, 2011-12 & 2012-13.
- x) Notarized copy duly audited copy of Profit / Loss account of immediate preceding 3 Financial Years i.e. FY 2010-11, 2011-12 & 2012-13.
- xi) A self-certificate declaring if any director of the tenderers company have any relations with any employee working in SAIL Corporate Office as per format attached in annexure VII
- xii) Declaration of acceptance of entire Scope of Work, Techno-Commercial Terms & Conditions as per format Form1

The Bidders are requested to please attach the final checklist of the documents submitted as per following format:

S.No	Details	Provided in Technical Bid
1	Company's Name	
2	Company's Turnover during Previous Three Years (Documents in Support to be enclosed)	
3	Number of Persons Employed in Customer Support Division at Delhi	
4	Consent for Comprehensive Services (Ref. Scope of Work)	Yes / No
5	Acceptance to all Terms & Conditions in Tender No. SAIL/C&IT/2013-14/ENQ/AMC/SM-LAN/001 Dated XX/01/2014	Yes / No

6	Documents Enclosed :- i) Authorization letter from OEM for Enterasys Switches ii) Letter from OEM for Back to Back support iii) Undertaking that organization not blacklisted iv) Registration Certificate under Company Act 1956. v) Document in support that the bidder has a full-fledged in-house service center/ Technical Support office at Delhi/NCR vi) Copy of at least two orders/certificate of execution of maintenance contract of LAN (network). vii) Service Tax Regn. No. (Centre / State) certificate. viii) Sales Tax & VAT registration no. ix) Copy of PAN Card & and valid Income Tax Returns x) Duly audited copy of Profit / Loss account xi) A self-certificate declaring if any director of the tenderers organization has any relations with any employee working in SAIL Corporate Office. xii) Declaration of acceptance of entire Scope of Work, Techno-Commercial Terms & Conditions	Yes / No Yes / No Yes / No Yes / No Yes / No Yes / No Yes / No Yes / No Yes / No Yes / No Yes / No Yes / No
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(Authorized Signatory with Seal)

SCOPE OF WORK

- 1.0) The contractor shall provide the maintenance services for the Local Area Network (5 Matrix N7 Switches of Enterasys make as detailed in **Annexure-VI**) at various locations in Scope Minar.
- 2.0) “Maintenance Services” shall include comprehensive, Preventive and Breakdown maintenance. It shall also include supply and replacement of all defective parts / components, dressing of cables and any up-gradation to the switches at no additional cost to customer.
- 3.0) Firmware upgrade of each module (14 Nos.)
- 4.0) The contractor shall provide maintenance services from 9.00 a.m. to 6:00 p.m. on all working days of the customer to keep the equipment in good working condition. All service complaints shall have to be attended within 4 hrs of lodging the complaint.
- 5.0) The Contractor shall provide support for administration and configuration of switches at all locations in Scope Minar.
- 6.0) Preventive maintenance will have to be carried out on quarterly basis. This would involve cleaning of the switches using a vacuum cleaner / blower. All equipment, tools and tackles required for preventive maintenance / Breakdown maintenance will have to be arranged by the contractor including manpower.
- 7.0) Emergency services whenever required will have to be provided i.e. even on closed Saturdays, Sundays, Closed Holidays and National Holidays.
- 8.0) The Contractor shall make changes in the switches as per the reliability improvement notice, logic improvement notice, engineering improvement notice issued by manufacturer from time to time in the existing system. Cost of additional spare parts that may be required for making these changes shall be borne by the contractor.
- 9.0) The contractor shall maintain proper organization in terms of Human Resources, tools and test equipment, gauges & gadgets to run diagnostics.

10.0) Penalty Calculation

- a. **Penalty for downtime due to non-availability of LAN Switches:-** Any failure in the covered equipments thereof should be rectified / replacement should be provided within a maximum period of 8 hours of lodging complaint. If the switch is down beyond 8 hours, penalty at the rate of **Rs.5000 (Five Thousand only)** per day (including intervening holidays) will be charged or recovered from bidder out of quarterly payment of AMC.
- b. **Penalty for failing to do Preventive Maintenance:-** If the contractor fails to perform quarterly preventive maintenance, for every failure, penalty of Rs 1000 per switch shall also be levied over and above the penalty for down time.

11.0) Downtime Calculation

Downtime is to be calculated as under:

If the network connectivity due to any switch is not available, the system will be considered as totally down for that period.

Down time will not be considered under the following conditions

- Time taken for prescheduled Preventive Maintenance and health check at a time convenient to Successful Bidder during the agreed Service Hours.

12.0) CARE OF THE EQUIPMENT

- i) The customer shall give the supplier full & free access to the equipment to enable the supplier to provide maintenance services.
- ii) Supplier shall not be liable for any damages/loss which may occur as a result of transfer of the system by the customer from present location to another location / premises without assistance by Supplier's Supervision Engineers in this respect.
- iii) Scope of contract does not include failure of product/parts due to mishandling, breakage and damages by the customer.

13.0) MAINTENANCE RECORDS & CALL COORDINATION

- i) Supplier shall maintain history card for each unit of the equipment indicating preventive maintenance activities, types of breakdowns, types of repairs carried out and spare parts used. These history cards shall be handed over to customer at the time of final payment (End of Contract).
- ii) The supplier shall supply the customer with call sheets or maintain Log Register on regular basis in which details of breakdown, time at which the breakdown took place, calls made and time taken to attend the call, etc. will be indicated. These call sheets/Log Register shall form the basic document on the basis of which uptime will be calculated and payment will be made.

14.0) UNINTERRUPTED SERVICES

In the event of new contract not being finalized by the customer before the expiry of the current contract, the contractor shall at the end of AMC period, continue to carry out the maintenance services for one or more quarter on the same terms & conditions.

TERMS AND CONDITIONS

- 1.0 The tenderer must comply with all the points explicitly included in the Scope of Work as per **Annexure- III**.
- 2.0 **Period of Validity of Bids:** Bids shall remain valid for 45 days from the date of bid opening as prescribed by SAIL. A bid valid for a shorter period is liable to be rejected.
- 3.0 **Price:** The price quoted shall be on firm price basis and shall not be subject to any escalation for any reason, whatsoever, and shall remain firm during the entire specified period of the contract except the service tax (as applicable). Service Tax (as applicable) should NOT be included in the rate and should be quoted separately. The price is to be quoted as per the schedule given at **Form -III**.
- 4.0 **Personnel deployed:**
Personnel deployed for the maintenance activities: The tenderer will ensure that the personnel assigned for the maintenance activities possess the required skills, qualification and experience in the relevant fields and are adequate in number to be able to complete the tasks as per schedule indicated in the Tender.
- 5.0 **Payment Terms:**
Payments due under this contract shall be made as per the payment terms described below in this section. The Party will raise an invoice of the payments becoming due and the SAIL shall release the payment after receipt of the invoice. All payments due to the party will be subject to Tax Deduction at Source as per the Prevailing Income Tax Act and other applicable levies as per the rules of the State / Central Governments.(eg WCT under Delhi VAT Act).

The Maintenance charges will be paid to the party on quarterly basis in the month following the quarter.

Release of payment shall be subject to the party fulfilling all the performance criteria.
- 6.0 **Penalty :**
As per clause 11.0 and 12.0 of Annexure – III (Scope of Work).
- 7.0 **Award of Contract;** SAIL will notify the successful party in writing about acceptance of their bids. The notification of award will constitute the formation of the Contract.
- 8.0 **Performance Guarantee:** The Party shall submit a Performance Guarantee (PG) Bond in the form of **Bank Guarantee in the prescribed proforma given at Annexure-V**, equivalent to **10% of the value of the Contract valid for Fifteen (15) months** from the date of Start of AMC. The Party shall submit the PG Bond within 21 days of signing of AMC. In case of unsatisfactory performance against the contract, the Performance Bank

Guarantee shall be encashed by SAIL. The PG Bond should be established in favour of Steel Authority of India Limited through any Scheduled Bank located at New Delhi / NCR, except Cooperative and Gramin Banks.

The Bank Guarantee shall be extended for such further period or periods as may be necessary to cover an extended period of contract after the actual date of completion of annual maintenance contract.

The Performance Guarantee to the value of 10% of the total annual contract value, shall be encashed by SAIL, if the supplier/contractor is not able to provide fault clearance in time.

9.0 Purchaser's Option for Extension of Contract: :

In the event of new contract not being finalized by 'SAIL' before the expiry of the current contract, supplier shall at the end of AMC period, continue to carry out the maintenance services on the same terms & conditions for one or more quarter after prior communication from 'SAIL'.

10.0 Conciliation:- All questions, claims, disputes and or differences of any kind whatsoever arising out of or in connection with or concerning this contract, at any time, whether before or after determination of the contract, shall be referred by the parties hereto for Conciliation before a Conciliatory Forum / Body. The Conciliatory Forum / Body will be composed of the following members:-

- i) Nominee of the Steel Plant / Unit – Independent of officer handling the contract. (to be nominated by the head of the concerned department.)
- ii) Nominee of the Contractor / Supplier.

The parties in dispute would place their facts in writing before the Body / Forum and the process of conciliation would be completed within the period of three months from the date of reference to the Conciliatory Forum / Body.

On failure of the conciliation, the aforesaid questions, claims, disputes and or differences shall be referred by the parties here to for the decision by a Sole Arbitrator to be appointed as herein after mentioned.

11.0 Arbitration:-

Matters in question, claims, dispute and or difference in respect of the contract to be submitted to arbitration as aforesaid shall be referred for decision to a Sole Arbitrator to be appointed by MD of Steel Plant / Head of unit, (SAIL). Before appointing the Sole Arbitrator, MD of Steel Plant / Head of unit, (SAIL) shall nominate three names out of which the contractor / supplier shall give his consent for one of them for appointment as Sole Arbitrator, failing which after 30 days of the issuance of the letter informing three names MD of Steel Plant / Head of unit, (SAIL) shall have the power to appoint one of the three notified persons as the Sole Arbitrator.

In case the designation of the Managing Director of Steel Plant (SAIL) is changed or his office abolished, the officer who for the time being is entrusted with the functions of the Managing Director of Steel Plant (SAIL), by whatever designation such officer is called, shall be the person designated to appoint the Sole Arbitrator. The arbitrator so appointed shall adjudicate upon the disputes between the parties hereto.

The Sole Arbitrator appointed as stated above, shall from the time of his appointment and throughout the arbitration proceedings, without any delay, disclose to the parties in writing any circumstances likely to give rise to justifiable doubts as to his independence or impartiality provided that the mere fact that such Sole Arbitrator is an employee of SAIL or its subsidiary shall not be regarded as such circumstances. The arbitrator shall decide the questions, claims, disputes or differences submitted to him by the parties in accordance with the substantive law for the time being in force in India.

The arbitrator shall hear the cases independently and impartially and shall not represent the interest of any party. Any arbitrator having personal interest in the case at the time of his appointment and at any time subsequently thereafter must withdraw from his office himself and the parties shall also have the right to ask him to do so. The venue of the arbitration shall be New Delhi. Procedure for conduct of the arbitration proceeding shall be decided by the arbitrator, in consultation with the parties before proceeding with reference. The arbitrator may hold preparatory meeting(s) for this purpose. In the preparatory meeting(s) as aforesaid, the arbitrator/s as the case may be in consultation with the parties shall also determine the manner of taking evidence, the summoning of expert evidence, and all such matters as are necessary for the expeditious disposal of the arbitration proceedings.

The provision of the Arbitration and Conciliation Act, 1996 and the rules framed there under, if any and all modifications / amendments thereto shall deem to apply and / or be incorporated in this contract and when such modifications / amendments to the Act / Rules are carried out. Work / supply under the contract shall be continued by the contractor / supplier, under the contract, during the arbitration proceedings and recourse to arbitration shall not be a bar to continuance for the work or supply unless otherwise directed in writing by the Plant / Unit.

- 12.0 Force Majeure:** If at any time during the currency of the Contract, the performance in whole or in part by either party of any obligation under this Contract shall be prevented or delayed by reasons of War, Hostility, Acts of Public Enemy, Civil Commotion(s), Sabotage, Fire(s), Flood(s), Explosion(s), Epidemic, Quarantine Restrictions, Acts of State or Acts of God, hereinafter referred to as eventualities, then the Contract period will get extended for the period of Force Majeure, provided Notice of the happenings of any such eventualities is given, supported by a certificate of appropriate authority or Chamber of Commerce by either party to the other within 15 days from the date of occurrence thereof. Neither party shall by reason of such eventualities be entitled to terminate this contract nor shall either party have any claim for damages against the other in respect of such non performance or delay in performance. Work under this contract shall resume as soon as practicable after such eventualities have come to an end or ceased to exist and the decision of the Customer as to whether the work has to be resumed shall be final and conclusive. Should one or both parties be prevented from fulfilling their contractual obligations by state of Force Majeure lasting continuously for a period of at least three months, the parties shall consult each other regarding further continuation of the Contract.
- 13.0 Sub-contracts:** The Party shall not assign or sub-contract in whole or in part the contract in any manner except with the prior approval of the SAIL.
- 14.0 Non-recruitment:** Each party shall neither recruit nor offer employment directly or indirectly to any personnel employed by the SAIL during the tenure of this contract or for a period of two years thereafter.

- 15.0 Amendments:** No variation in or modification of the terms of the contract shall be made except by written amendment signed by the parties.
- 16.0 General Condition of Contract:** General Condition of Contract governing supply contracts, of Steel Authority of India Limited (**SAIL P-I**), shall apply to this contract except to the extent modified herein. SAIL-PI can be downloaded from the Tender Section of the SAIL website www.sailtenders.co.in.
- 17.0 Compliance with all Laws:** The selected party shall be responsible and shall ensure compliance norms with all laws applicable. This will include inter-alia, rules, regulations, bye-laws and orders of the appropriate authorities and statutory bodies and may be enforced from time to time during the currency of the contract.
- 18.0 Termination of Contract:** This contract may be terminated:
- By SAIL on non-completion of jobs and / or non-performance of required services effective upon thirty (30) days prior written notice, as appropriate, at any time during the term / extended term of the contract. The decision of SAIL in this regard shall be final and binding.
 - By SAIL upon the issuance of notice to the vendor if the vendor is adjudged insolvent or bankrupt, or the institution of any proceedings by or against the vendor seeking relief, reorganization or arrangement under any laws relating to insolvency, or any assignment for the benefit of creditors, or the appointment of a receiver, liquidator or trustee of any of the vendor's property or assets, or the liquidation, dissolution or winding up of the vendor's business.
- 19.0 Exception To Tenders:** SAIL, in its sole discretion, unconditionally and without having to assign any reason, reserves to itself the right to accept or reject the lowest bid or any other tender or all the tenders. SAIL also reserves the right to accept any tender in full or in part.

Tender No :

**PROFORMA FOR BANK GUARANTEE FOR
PERFORMANCE GUARANTEE BOND**

To

Steel Authority of India Limited
19th Floor, Scope Minar, Laxmi Nagar
Delhi-110092

Bank Guarantee No. Dated

LETTER OF GUARANTEE

1. Whereas M/s (hereinafter referred to as the SELLER) and M/s STEEL AUTHORITY OF INDIA LIMITED (hereinafter referred to as the PURCHASER) have entered into a Contract vide Purchase Order no. - dated (hereinafter called the said AGREEMENT) for AMC of LAN at Scope Minar (hereinafter referred to as the Services) to the PURCHASER on the terms and conditions mentioned therein.
2. We,, New Delhi, at the request of the Seller, (name of the bank) do hereby undertake and indemnify and keep indemnified the PURCHASER to the extent of Rs. against any loss or damage that may be caused to or suffered by the PURCHASER, by reason of any breach by the SELLER of any terms and conditions of the said contract and/or in the performance of the said CONTRACT by the SELLER. We agree that the decision of the PURCHASER as to whether any breach of any of the terms and conditions of the said CONTRACT or in the performance thereof has been committed by the SELLER and the amount of loss or damage that has been caused to or suffered by the PURCHASER shall be final and binding on us and the amount of the said loss or damage shall be paid by us forthwith to the PURCHASER on demand and without protest or demur.
3. We, New Delhi, hereby further agree that the guarantee (name of the bank) herein contained shall remain in full force and effect during the period that would be taken for satisfactory performance and fulfillment in all respects of the said CONTRACT and that it shall continue to be enforceable for (a) one year from the date of Final Acceptance Test Report of the Services or (b) in the event of any dispute(s) between the PURCHASER and the SELLER, until such period(s) the dispute is settled fully, whichever date is later, and

that if any claim accrues or arises against us,....., by
(name of the bank)

virtue of the GUARANTEE before the dates referred to at (a) and (b) herein above, the same shall be enforceable against us,....., New Delhi
(name of the bank)

notwithstanding the fact that the same is enforced after the dates referred to at (a) or (b) hereinabove, whichever date is later, provided that notice of any such claim has been given by the PURCHASER before the dates referred at (a) & (b) hereinabove, as the case may be. Payments under this LETTER OF GUARANTEE shall be made promptly upon our receiving the notice to that effect from the PURCHASER on demand and without protest or demur.

4. It is fully understood that this Guarantee shall become effective from the date of the said CONTRACT and that We,....., New Delhi,
(name of the bank)

undertake not to revoke this Guarantee during its currency without the prior written consent of the PURCHASER.

5. We,....., New Delhi, hereby further agree that the
(name of the bank)

PURCHASER shall have the fullest liberty, without affecting in any manner our obligations herein under, to any of the terms and conditions of the said CONTRACT or to extend the time of performance of the said CONTRACT by the SELLER from time to time any of the powers exercisable by the PURCHASER against the SELLER and to forbear or to enforce any of the terms and conditions relating to the said CONTRACT and We, ,

(name of the bank)

New Delhi, shall not be released from our liability under this Guarantee by reason of any such variation or extension being granted to the SELLER or any forbearance and/or omission on the part of the PURCHASER or by any other matter or thing whatsoever which under the law relating to sureties would, but for this provision, have the effect of so releasing us from our liability under this Guarantee.

6. We....., New Delhi, hereby further agree that the Guarantee
(name of the bank)

herein contained is initially valid up to.....and the same shall be extended further according to the provisions contained herein above.

7. We....., New Delhi, hereby further agree that the Guarantee
(name of the bank)

Herein contained shall not be affected by any change in the constitution of the SELLER and/or the PURCHASER.

FOR AND ON BEHALF OF

(name of the bank)
New Delhi

Signature:

Name:

DULY CONSTITUTED ATTORNEY &
AUTHORISED SIGNATORY

Designation:

(name of the bank)
Address:

Dated :-

EQUIPMENT DETAILS

S. No.	Switch	Part No.	Description	Qty
1	Matrix N7 (5)	7C107	N7 Chassis	5
		6C207-3	1600W AC input power supply module for 6C107, requires 2 15 AMP power outlets per supply	10
		N-EOS-L3	Enterasys Operating System Advanced Routing Package for Matrix N-Series Switches	5
		7H4382-49	Distributed Forwarding Engine with 48 10/100Base-TX ports via RJ45	14
		MGBIC-MT01	1000Base-SX Mini GBIC w/MTRJ connector for Matrix E1 switches	10

Proforma for declaration of relation with any employee working in SAIL and also relationship within the meaning of Section-6 read with Schedule 1 A of the Companies Act 1956, with any of the Directors of Steel Authority of India Ltd.

Tender No.

(Please give declaration as applicable)

I hereby declare that the Proprietor or any Partner of the firm or Director of our company (Sellers's) has no relationship (within the meaning of Section-6 read with schedule 1 A of the Companies Act 1956) with any employee working in SAIL / any of the Directors of Steel Authority of India Ltd.

OR

I hereby declare that the following Proprietor / Partner / Director of our company (Sellers's) has relationship (within the meaning of Section-6 read with Schedule 1 A of the Companies Act 1956) with any employee working in SAIL / any of the Directors of Steel Authority of India Ltd:-

Name of Proprietor / Partner / Director of our company (Sellers's)	Name of SAIL employee / Director of SAIL	Type of relationship
1.		
2.		
....		

I further declare that if the contract is awarded to me, I shall inform company if any of my relative(s) as defined above, join / joins the company at any time subsequent to the award and during continuance of the contract.

Name & Signature of the Authorised Signatory of the Bidder & Seal of the company

**Declaration for Acceptance of Techno-Commercial Terms &
Conditions**

We, M/s
..... having the
registered office at

..... agree to all the
Techno-Commercial Terms & Conditions of the Request For Quote (RFQ) No. SAIL/C&IT/
2013-14/ENQ/AMC/SM-LAN/001 Dt. 01/02/2014 , issued by SAIL for Annual
Maintenance Contract of LAN at Scope Minar.

Our offer will remain valid for 45 days from the date of opening of the Tenders.

Date

**Signature
Name
Company Name & Seal of
authorized person**

Basic Information About The Tenderer;

1. **Company Name:**
2. **Ownership details:**
3. **Status of the company (Limited, PSU, SSI etc.)**
4. **PAN Number:**
5. **Bank Account Details:**
 - a) **Name of the Account Holder:**
 - b) **Name of the Bank**
 - c) **Branch Address**
 - d) **9-Digit MICR Code**
 - e) **Account Type - (S.B., Current Ac, Cash Credit Ac etc.)**
6. **Contact person Name & Designation:**
7. **Address of the Contact person / Phones / Fax / E-Mail ID:**

8. **Financial details of the company;**

Financial Year	Turnover (Rs in Crs)	Profit/ Loss (Rs in Crs)

9. **Current / Major Client List;**

S. No.	Name of the client	Services provided. (Attach copies of AMC)

We herby certify that all information provided above is correct and true to the best of my knowledge.

Signature

Name

SEAL:

STEEL AUTHORITY OF INDIA LIMITED
PROFORMA FOR PRICE BID

Ref No:
 Bidder's name & Address
 Telephone No. /Fax No./E mail

To
 Assistant General Manager (C&IT),
 SAIL, Scope Minar, 19th Floor, Delhi - 110092
 Tel: 011 - 22441948 Fax: 011 - 22464616

The Prices shall be quoted in the following manner as per scope of work and terms & conditions specified in AMC AGREEMENT:

S no.	Item Description (A)	Qty (B)	Unit price (Rs.) (C)	Total Price (Rs.) (D = B X C)	Taxes / Duties if any with nature & rate (E)	Amount (Rs.) (F = D + E)
1	N7 Chassis	5				
2	1600W AC input power supply module for 6C107, requires 2 15 AMP power outlets per supply	10				
3	Enterasys Operating System Advanced Routing Package for Matrix N-Series Switches	5				
4	Distributed Forwarding Engine with 48 10/100Base-TX ports via RJ45	14				
5	1000Base-SX Mini GBIC w/MTRJ connector for Matrix E1 switches	10				
6	Total Price (1+2+3+4+5) (in Rupees)					
7	CENVAT (Service Tax) Credit					
TOTAL Price(Net of CENVAT) (6-7)						

TOTAL COST including taxes (In words):- Rs.

1. Price should be quoted item wise. No Lump sum offer shall be accepted.
2. Please indicate the nature of Taxes & Duties etc. applicable and its rates in column (E).
3. Evaluation of price bids and ranking of offers would be based on total price quoted [Net of

CENVAT (Service tax) Credit].

4. In case of any discrepancy between prices mentioned in figures & words, the price quoted in words will be considered.

Date Signature, Company Name & Seal of authorized person